



AI & Partners

Amsterdam - London - Singapore



Explained:

Incident Report for Serious Incidents Under the AI Act (High-Risk AI Systems)

Reporting Template

Version 1.0.0

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How To Read This Document:



Explainer

This section provides a summary alongside a critical and constructive examination of the requirements.



Legal

This section provides a summary alongside a critical and constructive examination of the requirements.



Section 1

Administrative Information

S



EU AI Act: Article 73

Mandates providers of high-risk AI systems to report serious incidents to market surveillance authorities promptly, ensuring timely investigation and corrective actions to mitigate risks.



1.1	Responsible market surveillance authority in which country the incident occurred
A	Name of receiving market surveillance authority
B	Reference number assigned by market surveillance authority for this incident
1.2	Date, type, and classification of incident report
A	Data of report submission in format YYYY-MM-DD)
B	Data of incident in format YYYY-MM-DD) Or



C	Data and time of detection of the incident in format YYYY-MM-DD)
D	Manufacturer awareness date of reportability in format YYYY-MM-DD)
E	Type of report: ☐ Initial ☐ Follow up ☐ Combined initial and final ☐ Final (Reportable incident) ☐ Final (Non-reportable incident)
F	In case of initial and follow-up reports, please indicate the expected date of the next report in format YYYY-MM-DD)
G	Classification of serious incident: ☐ Death ☐ Harm to a person's health ☐ Disruption of the management of critical infrastructure ☐ Disruption of the operation of critical infrastructure ☐ Infringement of obligations under Union law intended to protect fundamental rights ☐ Harm to property ☐ Harm to environment ☐ All other reportable incidents
1.3	Submitter Information
1.3.1	Submitter of the Report
	☐ Provider ☐ Deployer ☐ Authorised Representative



	Other, please specify
1.3.2	Provider information
A	Provider organisation name
B	Contact's first name
C	Contact's last name
D	Email
E	Phone
F	Country
G	Street
H	Street number
I	Address complement



J	P.O. Bos
K	City name
L	Postal code
1.3.3	Authorised representative information
A	Authorised representative organisation name
B	Contact's first name
C	Contact's last name
D	Email
E	Phone
F	Country
G	Street



H	Street number	
I	Address complement	
J	P.O. Box	
K	City name	
L	Postal code	
1.3.4	Submitter's details if not also provider or authorised representative	
A	Registered commercial name of company	
B	Contact's first name	
C	Contact's last name	
D	Email	
E	Phone	



F	Country	
G	Street	
H	Street number	
I	Address complement	
J	P.O. Box	
K	City name	
L	Postal code	
M		
N		



1.3.5	Information about other incident obligations
	Incident was already reported to
	Under regulation/law



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The administrative table in the incident reporting template for high-risk AI systems under the AI Act is essential for ensuring a clear and organized response to incidents. By capturing key details such as the responsible market surveillance authority, incident classification (e.g., harm to health or property), and submitter information, it enables regulators to quickly identify the incident's scope and impact. Additionally, it helps track report submission dates, follow-up actions, and legal obligations, streamlining the regulatory process. This structured approach allows for a more efficient assessment, ensuring that all parties involved can act swiftly and effectively in addressing the incident.



Section 2

AI System Information



EU AI Act: Article 73

Mandates providers of high-risk AI systems to report serious incidents to market surveillance authorities promptly, ensuring timely investigation and corrective actions to mitigate risks.



2.1	Categorisation of system
A	EU Database registration ID
2.2	Description of system, and commercial information
A	System name (brand/trade/proprietary or common name)
B	Description of the system and its intended purpose Nomenclature text
C	Model



D	Catalogue/reference number
E	Serial number
F	Lot/batch number
G	Software version
H	Firmware version



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The AI system information table is crucial for effectively managing incidents involving high-risk AI systems. Categorizing the system helps regulators understand its intended use and potential impact, ensuring the right level of scrutiny based on the system's domain (e.g., healthcare or finance). The system description provides context on its functionality, helping assess the nature of the incident and its risks. Commercial information is necessary to trace the system's origin, identify the responsible parties, and ensure accountability. This structured approach ensures that regulators can quickly evaluate the situation, prioritize actions, and make informed decisions for effective oversight.



Section 3

Incident Information



EU AI Act: Article 73

Mandates providers of high-risk AI systems to report serious incidents to market surveillance authorities promptly, ensuring timely investigation and corrective actions to mitigate risks.



3.1	Nature of incident
A	Provide a comprehensive description of the incident, including (1) what went wrong with the system (if applicable) (2) a description of the effects (if applicable) and (3) likely causality.
2.2	AI System information
A	Estimated number of users affected
B	☐ Professional user ☐ other, please describe
C	Remedial actions taken subsequent to the incident



3.3	Initial reporter
A	Contact's first name
B	Contact's last name
C	Email
D	Phone
E	Country ☐ other, please describe
F	Street
G	Street number



H	Address complement
I	P.O. Box
J	City name
K	Postal code



Explainer

The incident information section in the reporting template is vital for providing a comprehensive understanding of the event. It includes details on the nature of the incident, which helps determine the severity and potential risks involved. The AI system information offers context on the system's functionality, purpose, and potential vulnerabilities, crucial for assessing how the incident occurred and its impact. Additionally, the initial reporter information ensures accountability and transparency, allowing regulators to trace the source of the report and maintain clear communication. This section enables a thorough evaluation, ensuring a swift and informed response to high-risk AI system incidents.



Section 4

Provider Analysis



EU AI Act: Article 73

Mandates providers of high-risk AI systems to report serious incidents to market surveillance authorities promptly, ensuring timely investigation and corrective actions to mitigate risks.



4.1	Provider's preliminary comments
•	For initial and follow-up reports: preliminary results and conclusions of provider's investigation
•	Initial actions (corrective and/or preventive) implemented by the provider
•	What further investigations do you intend in view of reaching final conclusions?
4.2	Cause investigation and conclusion
•	For Final (Serious incident): Description of the providers's evaluation concerning possible root causes /causative factors and conclusion



•	For Final (Non-reportable incident): Fill out rationale for why this is considered not reportable
•	Has the risk assessment been reviewed? ☐ Yes ☐ No If 'No', rationale for no review required
•	If the risk assessment has been reviewed, is it still adequate? ☐ Yes ☐ No Results of the assessments



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The provider analysis section is essential for understanding the root cause of an incident and the provider's initial assessment. The provider's preliminary comments offer early insights into the incident, highlighting any immediate actions taken or concerns. The cause investigation and conclusion section is crucial for identifying the underlying factors contributing to the incident, whether technical, operational, or human error. This analysis helps regulators understand the provider's approach to resolving the issue and preventing future occurrences. By thoroughly assessing these elements, regulators can ensure a more effective response and guide the provider in implementing necessary improvements.



Section 5

General Comments



EU AI Act: Article 73

Mandates providers of high-risk AI systems to report serious incidents to market surveillance authorities promptly, ensuring timely investigation and corrective actions to mitigate risks.

Submission of this report does not represent a conclusion by the provider and / or authorised representative or the market surveillance authority that the content of this report is complete or accurate, that the AI system(s) listed failed in any manner and/or that the AI system(s) caused or contributed to the alleged serious incident. I affirm that the information given above is correct to the best of my knowledge.

Date

YYYY/MM/DD HH:MM:SS



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The general comments section allows for any additional information or observations that may not be captured in other parts of the report. It provides an opportunity for the submitter to highlight relevant context, clarifications, or actions taken, ensuring a complete and transparent view of the incident for regulators to assess.



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